

Karvendra Pratap Singh v. State of U.P.

Allahabad High Court · Division Bench · 22 January 2019 · Writ-C No. 2265 of 2019 · WRIT - C No. 2265 of 2019 · **Writ disposed; petitioner directed to file objection before EE under cl. 6.8; merits not decided.**

HEADNOTE

A writ to quash a provisional assessment and demand for unauthorised use of electricity, where the petition did not aver that any objection had been filed under section 126(3), was disposed by directing the consumer to appear before the Executive Engineer under clause 6.8 of the U.P. Electricity Supply Code, 2005, with the assessing officer to consider and decide the objection in accordance with law within fifteen days. The Court did not adjudicate the claim on merit.

FACTUAL SUMMARY

The petitioner, Karvendra Pratap Singh, approached the Allahabad High Court seeking quashing of a provisional assessment order dated 3 September 2018 and a demand notice dated 10 December 2018, both founded on an allegation of unauthorised use of electricity. The assessing officer was the Executive Engineer (Revenue), Electricity Distribution Division, Dakshinanchal Vidyut Vitran Nigam Ltd., District Etah. The writ petition contained no averment that any objection to the provisional assessment had been filed. The State and the distribution licensee were represented.

HOLDING-UNITS

INTERPLAY · UP-2005::6.8

provisional UUE assessment — writ vs clause 6.8 / s.126(3) objection

HOLDING

Where a consumer seeks quashing of a provisional assessment and demand for unauthorised use of electricity without averring that any objection was filed under section 126(3), the High Court will not decide the claim on merit and will instead relegate the consumer to the clause 6.8 remedy: appear before the Executive Engineer with the objection or representation, and the assessing officer shall consider and decide it in accordance with law. ¶ 2-3

FLAG The Court referred to 'Section 126 (3) of the U.P. Electricity Act, 2003'. The provision is s.126(3) of the Electricity Act, 2003.

PRINCIPLE TAGS

clause-6.8-hearing-procedure-mandatory-before-uue-conclusion A writ to quash a provisional assessment and demand for unauthorised use of electricity, where the petition did not aver that any objection had been filed under section 126(3), was disposed by directing the consumer to appear before the Executive Engineer under clause 6.8 of the U.P.. ¶ 2-3

s126-procedural-strictness-notice-and-hearing A writ to quash a provisional assessment and demand for unauthorised use of electricity, where the petition did not aver that any objection had been filed under section 126(3), was disposed by directing the consumer to appear before the Executive Engineer under clause 6.8 of the U.P.. ¶ 2-3

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — MERITS OF THE PROVISIONAL ASSESSMENT DATED 3.9.2018 AND THE DEMAND DATED 10.12.2018

The Court made clear that it had not adjudicated the petitioner's claim on merit. ¶ 4

